

The State etc.

Sr. No.	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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20.05.2020 Mr. Abid Saqi, Advocate for applicant/appellant.
Mr. Ahmad Saeed, Deputy Prosecutor General for the State.
M/s Syed Zahid Hussain Bukhari and Ms. Khalida Parveen,
Advocates for the complainant.

Through instant miscellaneous application, Farooq Hussain (applicant/appellant) seeks suspension of execution of sentence awarded to him by learned trial court/Addl. Sessions Judge, Faisalabad *vide* judgment dated: 30.04.2019. The detail of conviction and sentence is as under :-

<u>Conviction</u>	<u>Sentence</u>
<u>Under Section:</u> 302 (b) PPC	“ <i>Imprisonment for Life</i> ” as <i>Taz’ir</i> for committing <u>Qatl-e-amd of Imran Khan</u> with payment of compensation Rs.3,00,000/- to the legal heirs of Imran Khan (deceased) under Section 544-A Cr.P.C and said compensation has been ordered to be recovered as arrears of land revenue and in case of non-recovery of compensation as arrears of land revenue, to further undergo S.I. for six months.

Benefit under Section 382-B Cr.P.C. was also extended to the applicant.

2. After hearing learned counsel for the parties, learned Deputy Prosecutor General and going through the available record, it has been noticed that there are two deceased persons (i.e. Imran Khan and Mst. Saba Iqbal) and two injured ladies (i.e. Iqra Bibi and Jannat Bibi), in the case; role attributed to the applicant is that he caused firearm injury to Saba Iqbal (one of the deceased) only; he neither caused any injury to Imran Khan (one of the deceased) nor to “Iqra Bibi and Jannat Bibi”

(injured ladies); during trial of the case, all the legal heirs of Saba Iqbal (deceased) effected compromise with present applicant and got recorded the same before learned trial court, which was accepted; Iqra Bibi and Jannat Bibi (aforementioned injured ladies) did not appear during trial of the case; even otherwise, Tariq (accused) to whom role of causing firearm injury to Jannat Bibi (injured lady), was attributed and Munawar (accused) to whom role of inflicting injuries to Iqra Bibi (injured lady), was attributed, have been acquitted by the learned trial court through same judgment; applicant has been convicted and sentenced by the learned trial court for committing murder of Imran Khan (deceased) only but as per own case of the prosecution, applicant did not cause any injury to Imran Khan (deceased) rather role of causing firearm injuries to said Imran Khan was attributed to Shabbir, Abid and Shahid (accused persons) but they all three have been acquitted by the learned trial court through same judgment dated: 30.04.2019. It has been categorically observed by the learned trial court in the aforementioned judgment that neither motive was attributed to the applicant by the prosecution nor could be established against him during the trial.

3. In view of what has been discussed above, aforementioned conviction recorded against the applicant for committing murder of Imran Khan (one of the deceased) needs reappraisal of evidence, therefore, case of the applicant for suspension of execution of the sentence has been made out. Resultantly, instant miscellaneous application is **allowed**; execution of the aforementioned sentence awarded to Farooq Hussain (applicant), is hereby suspended and he is ordered to be released on bail till final disposal of main criminal appeal, subject to his furnishing bail bonds in the sum of Rs.200,000/- (Rupees two hundred thousand only) with two sureties each in the like amount to the satisfaction of Deputy Registrar

(Judicial) of this Court. However, applicant is directed to remain present before this Court on each and every date of hearing fixed in main criminal appeal.

(Farooq Haider)
Judge

Approved for reporting

(Farooq Haider)
Judge

Kashif